Oregon City Public Voices and Oregon Homes Rulemaking

Repository coverage, historical enforcement concerns, and an evidence-based assessment of Annika Eriksson's participation

Research date: October 13, 2026. This is targeted, preliminary public-records research—not an exhaustive audit, a finding of misconduct, or a legal opinion.

1. Findings in brief

Other residents have raised concrete, related concerns over many years. August 2013 minutes record residents challenging sidewalk/tree repair obligations, limited-income burdens, and deadlines. October 2015 minutes record calls for staff to reach the Commission without fear of retaliation and concerns about the City Attorney's relationship to the manager. November 2019 minutes document a neighbor dispute, a due-process concern, and questions about complaints against City staff. These are meaningful leads; the minutes establish that concerns were raised, not that the City violated the law. [C1–C3]

Steve Varga remains unverified. The recalled remark and his underlying situation were not located. Twenty recent recording-caption panels, three recently uploaded historical recordings, name variants, and relevant packet searches were checked. One additional historical-review recording could not be reliably opened. Automatic captions can miss names or wording; this search does not establish that he did not speak. No property, enforcement case, or motive has been assigned to him.

Your written participation was formally recorded. The published Phase One roster identifies Annika Eriksson as an individual bringing lived experience. Earlier submissions, the July 7 comment, and the September 28 submission updated September 30 are publicly preserved. The last of these is included in the October 22 Commission packet. [S1–S4, S8–S9]

There was a substantive staff response to the earlier preservation concerns. The August staff report summarizes concerns closely matching your July submission about lost housing, utility continuity, and demolition by neglect, then says they fall outside this rulemaking's authority and scope. That is stronger evidence of reception than packet inclusion alone. It is staff's scope assessment—not an endorsement or rejection of your allegations against Oregon City. [S7, p. 10]

Your central redlines are not visible in the October 8 recommended rules. The ten-year involuntary-vacancy exclusion, utility-hardship condition, broad waste-service citation protection, and proposed preservation section are absent from the inspected draft. No personal motive can be inferred from that omission. Adoption is still prospective: the official page says the Commission may adopt Division 47 on October 22, 2026. [S8; S10]

2. What the repository migration actually shows

The City currently publishes multiple, overlapping access routes rather than one complete searchable repository:

- **Current CivicClerk meetings:** The City's current meeting page identifies this as its new meeting-management software. It directs readers elsewhere for materials before July 1, 2024. Some older packets have also been migrated into CivicClerk, so the stated date division is not perfectly exclusive. [R1]
- **July 2020–June 2024 archive:** The City embeds the Municode Meetings portal and offers a direct mobile-friendly link. Legacy attachment URLs still appear on government-cloud blob storage. [R2]

- **September 2008–June 2020 archive:** The City embeds Granicus. The official page says the legacy system is no longer updated and will be removed after documents are transferred. [R3]
- **Legistar/Granicus metadata and file storage:** The official legacy API supplied 1,704 event records for January 2010–June 2020 after pagination. Only 169 City Commission records in that inventory exposed a minutes-file URL; 165 downloaded successfully. An absent URL does not establish an absent underlying record. [R4]
- **ORMS/Webdrawer:** The Meeting Document Archive page still points to Webdrawer and says it is under construction. The linked ORMS search returned a 404 during this research. That establishes a broken access route, not destruction of records. [R5]
- **Laserfiche E-Vault:** The public-records portal expressly warns of access delays during transition and says records are being added weekly. The earlier investigation inspected its departmental and meeting folders. Visibility and indexing should not be treated as a completeness certification. [R6]
- **Official YouTube channel:** Recent live meetings and newly uploaded older recordings coexist. For example, recordings titled July 17, 2002 and July 3/October 2, 1996 appeared among recent uploads. Upload date and meeting date must be kept separate. Captions are an additional search aid, not certified transcripts. [V1–V23]
- **Municode municipal code:** This is the City's linked code publication, distinct from signed ordinances, resolutions, historic code editions, and meeting records. Pending amendments should not be inferred to be effective merely because they appear in a packet. [R1; C4]

Coverage claim: Principal relevant systems were mapped and accessible records were searched. This is not a claim that every City dataset, permit, complaint file, recording, or migrated document was reviewed. Property/GIS databases and operational case files require further, focused work once the relevant person or case is identified.

3. Verified historical public voices

August 21, 2013: affordability, disability, notice, and sidewalk/tree obligations

The official minutes identify five speakers addressing the same enforcement episode. [C1, pp. 1–2]

- **Doris Enderlin** questioned sidewalk ownership and responsibility where documents suggested the City owned the trees. Public Works said repair notices arose from a trip-hazard complaint and explained its view that owners were responsible.
- **Judy Coleman** challenged whether her flat sidewalk needed repair and asked whether a tree had to be removed. The mayor suggested checking for misidentification; Public Works said tree removal was not necessary and offered further discussion.
- **Sherry Roe** described conflicting ownership/responsibility information, concerns about the City's tree selection and planting, and neighbors on fixed incomes who could not afford repairs.
- **Irene Toth** described lack of notification when buying, limited resources, disability-related hardship, and inability to meet the November deadline. The police chief said he would obtain more information from Code Enforcement and communicate with the neighborhood.
- **Sheila Heesch** questioned the extent of a corner-lot owner's responsibility and why owners bore costs associated with the original tree planting.

Potential relevance: These are unusually specific records of officials hearing economic and disability-related difficulties in enforcement—not merely generalized political criticism. Tony Konkol is listed as Community Development Director attending the meeting. Attendance is a lead to knowledge and institutional continuity, not proof he personally directed these notices or ignored an accommodation request.

Counterevidence/limits: The minutes also record offers to investigate and discuss the issues. They do not disclose the eventual outcomes, identify violations of federal rights, or establish that your circumstances were legally identical. Request notices, extensions, hardship responses, and dispositions before treating these residents as comparators.

October 21, 2015: retaliation fears and the independence of legal oversight

The official minutes contain the following concerns in the context of the former manager's termination and contract dispute. [C2, p. 2]

- **Kevin Hunt** questioned the severance-contract decision and whether it had been made in executive session.
- **Betty Mumm**, speaking as a former commissioner, called for a policy allowing staff to approach the Commission without fear of retaliation.
- **Kathy Roth** questioned infrastructure-site risks and the advice previously given about the manager's contract.
- **James Nicita** identified what he considered an institutional transparency problem: the manager's relationship to hiring/firing the City Attorney, especially when manager and Commission interests conflicted. He advocated a charter change.

Potential relevance: The organizational-review concern predates the 2021 criticism of HR evaluating its superior. It provides specific policy-history requests: escalation channels, attorney appointment/removal authority, conflicts procedures, and independent review.

Limits: These are speakers' concerns, not findings that retaliation occurred or definitive interpretations of the charter. Konkol was listed as Community Development Director, not City Manager, at this meeting. Do not attribute the former manager's dispute to him merely because he attended.

November 20, 2019: a neighbor dispute reached the Commission

Paul Edgar raised a neighbor dispute concerning unimproved rights-of-way and requested investigation. Konkol explained the situation and parties' agreements; Police Chief Jim Band recommended County mediation. **Bob Mahoney** questioned whether due process had been considered. The minutes record discussion of the process for complaints about staff performance. Later, Commissioner Rocky Smith requested the number of written staff complaints relating to the dispute and the City's responses. [C3, pp. 1–2, 5–6]

Potential relevance: This is a verified example of neighbor conflict intersecting with municipal decision-making and staff-accountability concerns. It suggests requesting the initiating complaints, agreed actions, mediation referrals, and staff-complaint responses.

Limits: The record does not establish weaponization, unlawful enforcement, or a City conspiracy. Mediation was proposed; the minutes do not identify an adjudicated wrong. This episode cannot be attributed to Varga.

4. Recent voices and important distinctions

More than one kind of complaint is present

The September 2, 2026 Commission recording includes a speaker whose captions render his name as **Tom Guy**, discussing nearby tree clearing, its effects, and his perception of contrasting treatment of individual tree permits and development. The spelling should be confirmed from the sign-in record before use in a pleading. This is an account of development impacts, not verified code retaliation. [V2, approximately 23:40–27:26]

The October 7, 2026 recording includes **Ben Blessing**, a planning consultant, whose development-related comment was stopped after the mayor and attorney explained their concern about receiving testimony ahead of a quasi-judicial application. The rationale recorded was impartiality/ex parte concerns; no retaliatory finding follows simply because the comment was curtailed. [V1, approximately 19:27–24:27]

Craig Davis's September 20 written comment in the October 7 packet asks for enforcement of electric-motorcycle restrictions and describes frustration with the response to his calls. This is a request for stronger enforcement, not opposition to enforcement. [C4, p. 6]

The reviewed record therefore contains affordability concerns, criticism of burdens or process, demands for stronger enforcement, and case-specific procedural limits. A count of public complaints cannot itself establish municipal bad faith.

A new penalty proposal merits separate tracking

The October 7 packet describes proposed amendments increasing the general civil-infraction maximum from $300 to $1,000, not only street-tree penalties. Its staff report says general civil-infraction revenue would increase if adopted, while describing street-tree penalties' purpose as deterrence. The video records a first-reading vote and a later second reading being contemplated. [C4, pp. 160–169; V1, approximately 1:43:16–1:44:56]

This is a policy-development lead—not proof of an enacted change, improper revenue motive, retroactive applicability, or a connection to your case. The draft ordinance's effective-date language cannot replace verification of final adoption.

5. Your actual rulemaking record

Agency and body names

DLCD is the Department of Land Conservation and Development. **LCDC** is the Land Conservation and Development Commission. The MHOR Rulemaking Advisory Committee advises staff and the Commission; it is not itself the adopting Commission. Distinguishing these actors prevents attributing a staff summary or a fellow commenter's criticism to commissioners. [S1; S10]

Formal membership and written participation

The published Phase One roster lists you as an individual with lived experience, one of four roster entries in that perspective category. It does not list Oregon City as a represented jurisdiction. Other local governments and statewide municipal/county organizations appear. Oregon City's own letters are separate public submissions; their existence does not establish an Oregon City seat on the RAC or that your lawsuit defendants attended it. [S1]

The published chronology includes:

- **April 7:** tree obligations, property transfers, liens, and hardship; in the earlier comment compilation, PDF pp. 10–11.
- **May 14:** written comments designated for RAC Meetings 1, 2, and 4; PDF pp. 27–28 and 31. Their actual email dates are May 14—not the earlier meetings' dates.
- **May 15:** a Meeting 3 submission described as a resubmission after a subject-line filing error; PDF pp. 29–30. That description comes from your email, not an independently inspected staff acknowledgment.
- **July 7:** anti-displacement and service-continuity comment, in the supplied PDF pp. 5–8 and August packet pp. 63–66.
- **September 28, updated September 30:** eight-page preservation, involuntary vacancy, accommodation, and record-process submission; newer public-comment PDF pp. 11–18 and October packet pp. 30–37. [S2–S4, S7–S8]

The July 29 meeting webpage separately identifies an **Exhibit 3—Eriksson**. Your submissions were therefore not merely private correspondence: they entered the publicly available Commission materials. [S11]

Attendance records need careful interpretation

The six published RAC summary tables list you in the **Committee Members Not Present** column for the synchronous sessions. Column placement was checked, rather than inferred from extracted text order. Your written submissions establish asynchronous participation; those tables do not erase it. Your May 14 email expressly refers to schedule accommodation. [S2; S5]

If a table is incorrect, request correction with Zoom participation evidence or correspondence. The records inspected do not establish removal from the committee, refusal to accept written participation, or hostility toward you personally. Anonymous oral remarks should not be assigned to you without additional evidence.

6. Reception: what is demonstrable

A. Formal recognition is clear

Your roster status, repeated published submissions, named exhibit, and inclusion in the forthcoming October packet establish recognition and preservation of your contribution. They do not demonstrate endorsement, agreement with municipal misconduct allegations, or individual commissioners reading every page. [S1–S4, S8, S11]

B. The earlier displacement concerns received a staff scope response

The August staff report's comment/response table records concerns about housing lost through demolition by neglect and residents lacking water/trash access because of income. Staff classifies the requested overall reforms as outside the rulemaking's authority and scope. The language closely matches the distinctive themes of your July 7 submission, although the aggregate row does not identify its author. [S7, p. 10]

Interpretation: Staff acknowledged the subject but did not propose regulating it through Division 47. That is substantive scope-based non-uptake, not a finding that the experiences were false. It also prevents describing the entire July comment as wholly unacknowledged.

C. Lived-experience inclusion was contested by some participants—but staff defended its place

The July 9 summary records an unidentified participant feeling frustrated and insufficiently heard amid technical discussion. It reports that perception; it does not adopt it as a Commission admission. The May 20 summary likewise records an unidentified member requesting equity and ADA consideration. These statements cannot be credited to you personally from the summaries alone. [S5, Meeting 5 p. 5; Meeting 6 p. 6]

Albany Mayor **Alex Johnson II's** talking points argue that local staff are subject-matter experts and request a revised RAC structure, including separate accessible community engagement. They do not name you. The August staff summary frames a comment as favoring separate engagement instead of lived-experience participation on the RAC. The source wording and staff characterization should be distinguished. [S3, p. 41; S7, pp. 9–10]

Staff's response expressly recognizes selection for expertise **and lived experience**, says all RAC input is considered but not all directly incorporated, and anticipates more parallel community engagement. The July 9 summary records Chair Allan Lazo thanking participants and saying LCDC reads public comment. These are positive institutional signals about inclusion and input, but not personal praise or proof of influence on the text. [S5, Meeting 6 p. 7; S7, pp. 9–10]

D. The latest submission was included; a specific latest response was not located

The October 8 staff report says comments were considered, organizes responses by topic, and attaches your updated September submission. Its main nine-page analysis does not separately identify or dispose of your specific preservation redlines, requested supplemental analysis, or referral proposal. [S8, pp. 1–9, 30–37]

This is a documentation gap worth asking about. It is not enough to conclude staff did not read the submission or commissioners rejected it: the October 22 meeting has not occurred as of this report.

7. Potential impact versus demonstrated rule changes

The October 8 recommended text was checked against the proposals, not only searched for your name. [S8–S9]

- **Ten-year involuntary-vacancy exclusion:** Not found. The draft retains the statutory-style five-year demolition categories without your utility/lien/title-dispute exceptions.
- **Twenty-four-month service-continuity/hardship review condition:** Not found. Public-facilities provisions continue to address development review and infrastructure requirements, not the proposed historic shutoff/hardship condition.

- **Waste-service hardship protection from citations/liens:** Not found. The draft's trash-storage rule is much narrower than general nuisance enforcement: storage facilities are not required, and screening applies to common storage areas for developments over four units in specified locations. Do not treat it as a general rule governing all existing residents' rubbish citations.
- **New section 660-047-0015 on housing preservation:** Not found in the draft's section list or text.
- **Dedicated socioeconomic/ADA/legal-vulnerability analysis and individualized response matrix:** A matching dedicated analysis was not located in the inspected October materials. There are topic-based staff response tables; that is not the individualized matrix requested.
- **Transfer disclosure and innocent-owner lien review:** The inspected draft does not establish the broader lien-disclosure/release system you sought.

Demonstrated impact: formal written contribution, preservation of an alternative housing-policy framing, and a staff response to its earlier core themes. **Not demonstrated:** adoption of these redlines, attribution of any change or delay specifically to you, a personal commissioner reaction, or proof that your participation caused municipal enforcement against you.

Other institutions partly shared the preservation concern

Washington County's August 7 letter says the vacant-lot requirement can discourage retaining existing, typically more affordable homes. That independently supports the narrower concern about preservation incentives. It does not endorse your allegations about Oregon City, banks, deliberate vacancy creation, or disability discrimination. [S3, PDF pp. 195–197; printed pp. 193–195]

Oregon City's July 31 letter, signed by Kelly Hart, raises local-review, infrastructure, statutory-scope, and technical drafting concerns. It requests recognition of **franchise utility easements**. That is not an express defense of a garbage monopoly or endorsement of withholding water from distressed households. The actual letter supports some state standards and asks for a workable statewide pathway. It demonstrates a different regulatory emphasis; it does not prove the motives attributed to the City in your later comment. [S3, pp. 80–84]

8. Potential relevance to your litigation

The published, dated submissions provide a concrete record of civic petitioning and your stated concerns. Their inclusion does not validate every factual or legal assertion within them. A rulemaking packet is not a judicial finding against the City.

For any retaliation theory, preserve the distinction between **your speech**, **actual knowledge by the relevant City defendant**, **the alleged adverse decision**, and **evidence linking the two**. Public availability or a City official submitting a different letter to the same agency does not establish that each defendant read your comments.

Chronology is especially important. If the dates in the supplied complaint are accurate, the alleged June 23, 2026 accommodation denial predates the July 7 comment. The updated September submission postdates the alleged August 25 fine judgment. Those later comments cannot themselves explain earlier decisions. Earlier April/May comments may matter, but their recipients and City-side dissemination still need evidence.

The older minutes identify possible prior institutional notice of affordability problems and oversight concerns. They do not alone establish a widespread unconstitutional custom or the same policy causing your injury. Corresponding case files, decisions, training, delegations, and actual policy history are still necessary.

LCDC/DLCD's reception should not be conflated with Oregon City's response. The state staff scope assessment is not an admission about the City's liability and cannot establish municipal ratification. The earlier reports' Monell cautions remain applicable.

9. Focused next steps

For Varga: The most efficient remaining identifier is the watch link, approximate date, memorable second sentence, or screenshot. Ask the Recorder for public-comment sign-in records and written submissions for the likely period, including name variants. Do not assign an enforcement case using a people-search address or an unverified same-name match. No such private identity matching was used here.

For the historical speakers: Obtain the 2013 neighborhood notices and outcomes; 2015 escalation/attorney-authority policy history; and 2019 staff-complaint responses and mediation referrals. Ask for existing records, not a conclusion that the City acted unlawfully. These are better comparator leads than a general tally of critical speakers.

For your rulemaking impact: Request a written disposition or scope/referral explanation for each September redline; any referral to OHCS/HAPO as requested; written-participation handling and distribution records; and clarification/correction of attendance if warranted. Ask whether a housing-preservation track outside Division 47 is available rather than assuming the Commission possesses the required authority.

Before October 22: Verify the current agenda, testimony opportunities, and process directly with the agency. The extended written-comment period closed October 2; this report does not assume another unrestricted written or oral comment opportunity. The recommended draft is not yet a final adopted rule. [S10]

10. Methods, coverage, and source register

This pass retrieved and text-scanned **165 legacy Commission minutes, 734 pages**, from 169 exposed file links; four returned non-PDF/404 responses. All retrieved files contained extractable text. The 1,704-event inventory spans 2010–June 2020; file availability is concentrated in 2013–2020 and is uneven. Nine minute documents produced the specified keyword hits; some hits were administrative descriptions, not public complaints. Relevant passages were reviewed substantively. The catalogue is not a census of City complaints.

Seventeen state PDFs total **984 pages**, and the October 7 City packet adds **212 pages**. These were text-searched and relevant portions reviewed, not all 1,196 pages interpreted line by line. Combined PDF coverage is 1,930 pages. Twenty recent City recording-caption panels and three recent historical uploads were keyword-checked with focused passage review. Automatic-caption spelling, omissions, and speaker attribution remain limitations; the underlying audio was not independently transcribed in full.

The workbook contains repository coverage, public voices, your comment chronology, attendance-as-recorded, proposal tracking, the legacy event inventory, minutes download audit, and recording search scope. The source bundle preserves focused extracts and key originals; the complete retrieved collection remains in the conversation files. No item is certified as an authenticated litigation exhibit simply because it came from an official portal.

City documents

C1: August 21, 2013 Commission minutes, pp. 1–2; Event 1684.

http://legistar.granicus.com/Oregon-City/meetings/2013/8/1684_M_City_Commission_13-08-21_Meeting_Minutes.pdf

C2: October 21, 2015 Commission minutes, pp. 1–2; Event 2105.

http://legistar.granicus.com/Oregon-City/meetings/2015/10/2105_M_City_Commission_15-10-21_Meeting_Minutes.pdf

C3: November 20, 2019 Commission minutes, pp. 1–2 and 5–6; Event 2879.

https://legistar.granicus.com/Oregon-City/meetings/2019/11/2879_M_City_Commission_19-11-20_Meeting_Minutes.pdf

C4: October 7, 2026 packet, CivicClerk file 9311; relevant pp. 6, 160–169.

https://oregoncityor.api.civicclerk.com/v1/Meetings/GetMeetingFileStream(fileId=9311,plainText=false)

Rulemaking documents

S1: Phase One roster, 1 page.

https://www.oregon.gov/lcd/LAR/Documents/Phase%20One%20MHOR%20Homes%20Rulemaking%20Roster.pdf

S2: February 19–June 9 public comments; relevant PDF pp. 10–11, 27–31.

https://www.oregon.gov/lcd/LAR/Documents/2.19.26-6.9.26_MHORHomes_PublicCommentReceived.pdf

S3: Supplied June 9–August 7 compilation; 203 PDF pages, two preliminary pages followed by printed numbering. Your July comment: PDF pp. 5–8; Oregon City pp. 80–84; Albany pp. 41; Washington County pp. 195–197.

https://www.oregon.gov/lcd/LAR/Documents/MHORHomesPublicComment.pdf

S4: August 8–October 2 compilation; 39 pages. Updated September submission: pp. 11–18.

https://www.oregon.gov/lcd/LAR/Documents/MHOR_Div47_PublicCommentReceived_8.8.26-10.2.26.pdf

S5: Six published RAC summaries, especially May 20 pp. 1, 5–6 and July 9 pp. 1, 6–7. Individual URLs are in the workbook.

https://www.oregon.gov/lcd/LAR/Documents/2.%20RAC05May20MeetingSummary_Final.pdf

https://www.oregon.gov/lcd/LAR/Documents/RAC06July09MeetingSummaryFinal.pdf

S6: July 29 Commission packet, including earlier written comments.

https://www.oregon.gov/lcd/Commission/Documents/2026-07_Item%202_MHOR_Combined_V2.pdf

S7: August 27–28 Commission packet; staff response table pp. 9–10; July submission pp. 63–66. Some internal staff headers label the item differently from the webpage; identify by full document and page.

https://www.oregon.gov/lcd/Commission/Documents/2026-08_Item%205_Combined_updated.pdf

S8: October 22–23 Item 3 packet, report dated October 8; staff report pp. 1–9; proposed rules pp. 10–19; your updated submission pp. 30–37.

https://www.oregon.gov/lcd/Commission/Documents/2026-10_Item%203_MHOR%20Div%2047_Combined.pdf

S9: September 22 V5 and October 8 V6 proposed rules; each 10 pages.

https://www.oregon.gov/lcd/LAR/Documents/Div47_Proposed_Rules_Interim_v5_9.22.26.pdf

https://www.oregon.gov/lcd/LAR/Documents/Div47_Recommended_Rules_v6_10.8.26.pdf

S10/S11: Official rulemaking status and July 29 exhibit list; live pages accessed October 13.

https://www.oregon.gov/lcd/LAR/Pages/Rulemaking.aspx

https://www.oregon.gov/lcd/Commission/Pages/July_2026.aspx

https://www.oregon.gov/lcd/Commission/Pages/October-2026-LCDC-Meeting.aspx

Repository and recording routes

R1–R6: Current meetings, 2020–2024 archive, 2008–2020 archive, legacy API, old Webdrawer route, and Laserfiche transition notice.

https://www.orcity.org/1709/Agendas-Videos-and-Minutes

https://www.orcity.org/3213/Archive---July-2020-to-June-2024

https://www.orcity.org/932/Archive---September-2008-to-June-2020

https://webapi.legistar.com/v1/oregon-city/events

https://www.orcity.org/1844/Meeting-Document-Archive

https://www.orcity.org/596/Public-Records-Self-Service-Portal

V1/V2: October 7 and September 2, 2026 Commission recordings. Other recording URLs and checked scope appear in the workbook.

https://www.youtube.com/watch?v=cwVPQG-DzIs

https://www.youtube.com/watch?v=6rKtXbVGyPU

Bottom line

There is verified historical evidence that residents raised affordability, review, and accountability concerns before your dispute. Your state-level advocacy was formally recognized, published, and partly addressed through a scope-based staff response. The record does not show adoption of your central redlines or personal commissioner hostility, and the final Division 47 decision remains pending. Varga's identity, exact remark, and circumstances still require a reliable meeting pointer.